

The Bureau of Indian Standards (Appointment, Terms and Conditions of Service of Director-General) Rules, 1987

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The Bureau of Indian Standards (Appointment, Terms and Conditions of Service of Director-General) Rules, 1987

Rule

THE-BUREAU-OF-INDIAN-STANDARDS-APPOINTMENT-TERMS-AND-CONDITIONS-OF-SERVICE-OF-DIRECTOR-GENERAL-RULES-1987 of 1987

Published on 2 July 1987

Commenced on 2 July 1987

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The Bureau of Indian Standards (Appointment, Terms and Conditions of Service of Director-General) Rules, 1987

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(1), dated 2nd July, 1987

GSR 639(E). - In exercise of the powers conferred by clause (e) of sub-section (2) of section 37 of the Bureau of Indian Standards Act, 1986 (63 of 1986), the Central Government hereby makes the following rules relating to the appointment of Director-General of the Bureau and his terms and conditions of service, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Bureau of Indian Standards (Appointment, Terms and Conditions of Service of Director-General) Rules, 1987.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

a. "Act" means the Bureau of Indian Standards Act, 1986 (63 of 1986);

b. "Bureau" means the Bureau of Indian Standards;

c. "Director-General" means the Director-General of the Bureau;

d. "Government" means the Central Government;

e. "section" means a section of the Act.

3.

[Appointment of Director-General]

[Inserted vide GSR No. 342(E) dated 12 May 1999.]

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(1)

There shall be a Selection Committee for recommending to the Government a panel of names for appointment of the Director-General under sub-section (1) of section 7.

(2)

The Selection Committee shall consist of the following persons :-

i)

Secretary of the Ministry/Department of the Government having administrative control of the Bureau;

- Chairman

ii)

Secretary, Department of Science and Technology;

- Member

iii)

[nominee of the Department of Personnel and Training;]

[Inserted vide GSR No. 445(E) dated 26 July 2006.]

- Member

iv)

[An outside Expert of eminence from the relevant field to be nominated by the Government;]

[Inserted vide GSR No. 445(E) dated 26 July 2006.]

- Member

(3)

[On the occurrence of a vacancy or when a vacancy is likely to arise in the post of Director General, the Selection Committee shall consider suitable candidates, including internal candidates, possessing requisite qualifications and experience as laid down in sub-rule (4).]

[Inserted vide GSR No. 404 dated 11 December 1999]

(4)

[In order to be eligible for appointment to the post of Director-General, a candidate shall have the following qualifications and experience, namely, -]

[Inserted vide GSR No. 364(E) dated 6 May 2011.]

(a)

(i)

Essential qualifications : a first class degree in Engineering or a first class Post Graduate degree in any branch of

Science,

(ii)

Desirable qualifications : a Post Graduate degree in any branch of Engineering or a Doctorate in Science or any branch of Engineering;

(b)

Experience : at least twenty five years combined experience in the following areas in the Government or Public Sector Undertakings or Autonomous Bodies or Private Sector, namely :-

i. Industrial Engineering Design or Research;

ii. Standardization;

iii. Quality Control;

iv. Basic scientific and technical research (in case of research experience in a laboratory, the same should be of national repute);

v. Administration.

Provided that candidates with Post Graduate degree in Engineering or Doctorate in pure Science or any branch of Engineering having twenty-three years of experience shall be eligible;

(c)

if the candidate is a Government servant, he shall have the educational qualifications and experience as specified in clauses (a) and (b) and should also be eligible for promotion to a post in HAG Scale [Rs. 67000 (annual increment @ 3%) Rs. 79000] in accordance with the rules and criteria as applicable to such post;

(d)

if a candidate is an employee of a Public Sector Undertaking or Autonomous Body, he shall have the educational qualifications and experience as specified in clauses (a) and (b) and at least two years regular service in a post with Pay Band-4: Rs. 37400-67000 plus Grade Pay of Rs. 10000 or equivalent and at least two years experience in senior management level for the candidate working in Private Sector;

(e)

on the closing date of receipt of application, the candidate should have at least three years service before superannuation.

(4A)

Notwithstanding anything contained in sub-rule (4), if the Central Government considers it necessary, it may, in the public interest, appoint a suitable officer to the post of Director-General under the Central Staffing Scheme, as per the procedure specified in that Scheme.

(5)

The recommendations of the Selection Committee shall be sent to the Government for taking a decision on the appointment of the Director General.

4.

[Term of Office]

[Inserted vide GSR No. 735(E) dated 10 November 1995.]

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- The Director-General shall hold office for a term of three years or until he attains the age of sixty years, whichever is earlier, and shall be eligible for re-appointment:

[Provided that the term of Director General may be extended by the Central Government for a period not exceeding two years or until he attains the age of sixty years, whichever is earlier.]

[Inserted vide GSR No. 861(E) dated 10 November 2000]

Provided that where the Central Government is satisfied that the re-appointment of an outgoing Director-General after he has attained the age of sixty years is in the interest of the Bureau, it may [for reasons to be recorded in writing re-appoint him for a period not exceeding two years.]

[Inserted vide GSR No. 45 dated 18 January 1997.]

5.

[Pay and Allowances]

[Inserted vide GSR No. 217(E) dated 5 April 2005.]

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- [The Pay Band for the post of Director-General shall be in HAG Scale [Rs. 67000 (annual increment @ 3%) Rs. 79000]. He shall be entitled to all other allowances as per the rules of the Bureau. However, in case of foreign travel officers of the Central Government service appointed on tenure or transfer or deputation basis, shall be governed by Foreign Travelling Allowance/Daily Allowance rules as are applicable to the Central Government servants of equivalent status and the officers of the Bureau of Indian Standards shall be governed by the rules of the Bureau.]

[Inserted vide GSR No. 364(E) dated 6 May 2011.]

6.

Staff Car.

- As Chief Executive of the Bureau, the Director-General shall be entitled to free use of staff car for official purpose including the journeys from residence to office and vice-versa. He will be allowed to use staff car (car upto and including 16 H.P.) for non-duty journeys upto five hundred kilometres per month on payment of an amount of one hundred and fifty rupees in accordance with instructions contained in the OM No. F.3(16)-E.II(A)/84(2) dated the 20th February, 1985 issued by the Ministry of Finance (Department of Expenditure).

7.

Termination of Appointment.

(1)

The appointment of the Director-General shall be terminable on three months' notice on either side without assigning any reason therefor :

Provided that the Government reserves the right not to accept the resignation tendered by the Director-General in the public interest :

Provided further that the Government may, in special circumstances, waive the stipulation of three months' notice by making payment of three months' salary and allowances in lieu of the notice period.

8.

Other Conditions of Service.

- With regard to the other conditions of service including joining time, earned leave, medical benefits, retirement benefits and leave travel concession, the Director-General shall be governed by regulations framed in this regard for the employees of the Bureau.

9.

[Power to relax]

[Inserted vide GSR No. 429(E) dated 13 June 2001]

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- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, for reasons to be recorded in writing, relax any of the provisions of these rules.

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